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TOP SECRET

FROM WASHINGTON TO FOREIGN OFFICE

FO1042 186

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Cypher/OTP

FOREIGN OFFICE SECRET AND
WHITEHALL SECRET (CABINET)
DISTRIBUTION

Sir R. Makins
No. 2533
November 25, 1954.

D. 8.01 p.m. November 25, 1954 L.T.
R. 4.14 a.m. November 26, 1954.

IMMEDIATE
TOP SECRET

Addressed to Foreign Office telegram No. 2533 of November 25.
Repeated for information to U.K.Del. New York.

Guard.

RECEIVED IN C.R.
SENT TO REGY.

My immediately preceding telegram: Quemoy and Formosa.

Text of the Exchange of Notes is as follows:

Begins:

"The Republic of China effectively controls both the territory described in Article VI of the Treaty of Mutual Defence between the Republic of China and the United States of America signed on ..... and other territory. It possesses with respect to all territory now and hereafter under its control the inherent right of self defence. In view of the obligations of the two parties under the said Treaty and of the fact that the use of force from either of these areas by either of the parties affects the other, it is agreed that such use of force will be a matter of joint agreement, subject to action of an emergency character which is clearly an exercise of the inherent right of self defence. Military elements which are a product of joint effort and contribution by the two parties will not be removed from the territories described in Article VI to a degree which would substantially diminish the defensibility of ~~the~~ such territories without mutual agreement".

Washington tel. No 65 of 1955

Ends.

2. (a) the reference in the third sentence to "either of these areas," is intended, according to the State Department, to cover not only the territories covered by the Treaty but also other territory under Chinese Nationalist control, i.e. the

/offshore

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offshore islands.

(b) You will note that "mutual agreement" and not mere consultation is required before resorting to the use of force. This means in the American view that the Chinese Nationalists can be effectively prevented from using the offshore islands as well as Formosa and Pescadores as bases for attacking the mainland. In practice American agreement is required for the Nationalists to move troops from Formosa to the offshore islands, but none is required to move troops away from the offshore islands back to Formosa. I shall confirm these interpretations tomorrow; if confirmed they go quite a long way.

3. While the State Department have now allowed us to copy the Exchange of Notes and given us another look at the Treaty, this is on the strict understanding that constitutional prerogatives should not be infringed by our possession of these texts before congressional leaders have seen them. It is therefore most important that no hint should be given that you have seen the full text of the Notes.

ADVANCE COPIES TO:

Sir I. Kirkpatrick
Private Secretary
Mr. W. D. Allen
Head of Far Eastern Department